Software Development Agreement

This Software Development Agreement (the **"Agreement"** or **"Software Development Agreement"**) states the terms and conditions that govern the contractual agreement between **GCOAT LLC**, having a principal place of business at **425 Frangipani Kingshill, VI, 00851,** (the **"Developer"**), and **Webbe Co. LLC,** having a principal place of business at **[Change Address] 123 Small Ville, Christiansted VI 00820,** (the **"Client")** who agrees to be bound by this Agreement.

WHEREAS, the Client is seeking to develop **The Webbe Co. LLC Budgeting App**, a mobile application (the "Software"), which is described in further detail on Exhibit A, and the Developer is a Developer with whom the Client has come to an agreement for ongoing software development.

NOW, THEREFORE, in consideration of the mutual covenants and promises made by the parties to this Software Development Agreement, the Developer, and the Client (individually, each a **"Party"** and collectively, the **"Parties"**) covenant and agree as follows:

1. Scope of Work

The Developer agrees to provide software development services and consulting for the Client (the **"Services")** as described in the project scope document attached hereto as **Exhibit A** (the **"Project Scope"**).

For clarity, **"Deliverables"** means all software, source code, documentation, designs, and other work product created or developed by the Developer for the Client under this Agreement, including all components required to achieve the Minimum Viable Product (MVP) described in Exhibit A.

a. The Developer will perform the Services in a professional and workmanlike manner and use best efforts to meet agreed timelines.
b. The Developer will produce the MVP based on Client specifications and deliverables outlined in Exhibit A.
c. The Developer will provide regular progress updates and be available for weekly status meetings or as reasonably requested. Communication will occur via email, video conference, or other agreed methods.

2. Compensation, Schedule & Support

In consideration of the Services described in this Agreement and Exhibit A, the Parties agree to the following terms of payment and support:

1. **Onboarding Fee**
   The client shall pay a non-refundable onboarding fee of $1,000 upon execution of this agreement.
2. **Monthly Payments and Project Term:**

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a. The total project budget for the MVP is $7,000, inclusive of the onboarding fee.
b. The project is expected to span approximately six (6) months, beginning **[Start Date]**, during which Client shall pay Developer $1,000 per month, unless otherwise agreed in writing.
c. If Client elects to pay less than $1,000 in any given month (but not below $500), the development timeline may be extended proportionally for up to six (6) additional months to allow completion of the MVP and full payment of the $7,000 budget.
d. Each invoice is due within thirty (30) days of the invoice date (Net 30).
e. Client shall timely pay all undisputed amounts. Any disputed portion of an invoice must be noticed in writing within 10 days, with reasonable detail; undisputed amounts remain due per Net 30.
f. Work performed and deliverables released in any month may be reasonably limited by the amount actually paid for that month.

3. **Monthly Work Plans and Milestones**
   At the beginning of each month, the Parties will agree in writing (email suffices) on a Monthly Work Plan identifying that month's deliverables and priorities. Completion of the agreed deliverables constitutes achievement of that month's milestone for invoicing and progress tracking.
4. **Post-MVP Development and Maintenance**
   After acceptance of the MVP, any additional features, redesigns, or enhancements requested by Client shall be billed at $60 per hour. No additional work shall begin without written authorization from the Client.
5. **All post-delivery corrections and bug fixes are governed by the Limited Warranty in Section 7.**
6. **Late Payments and Suspension**
   Invoices not paid within 30 days accrue interest at 1.5% per month (or the maximum rate permitted by law). The Developer may suspend work after 7 days' written notice if any undisputed invoice remains unpaid.
7. **Termination Before Completion**
   If the Client terminates the contract for any reason before the project is completed, the Client will pay the Developer for all services rendered up to the date of termination, plus any expenses incurred. All intellectual property rights to the Software transfer to Client only after full payment of the total project cost.

3. Term and Termination

This Agreement shall commence **[Start Date]**, and shall continue until the completion of the Services, unless earlier terminated by either party upon 30 days' written notice. Upon termination, the Client shall pay the Developer for all Services performed and expenses incurred through the termination date. Additionally, this Agreement shall automatically terminate upon the Developer's death. In such event, Client shall be obligated to pay Developer's estate or beneficiaries only the accrued but unpaid compensation and expenses due as of the date of death. If Client terminates this Agreement for convenience, Developer shall retain the onboarding fee and shall be entitled to payment for all work completed and any non-cancellable costs incurred prior to termination.

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Upon any termination, Developer will promptly deliver to Client all paid-for Deliverables and Client materials, and Client will promptly pay all fees and approved expenses accrued through the effective termination date.

4. Work Standards and Communication

a. The Client will have the right to review and approve all work done by the Developer and may request revisions or changes as needed. The Developer will use best efforts to complete all work in a timely and professional manner.
b. If the Developer is unable to provide the agreed-upon services due to illness, vacation, or other reasons, the Developer will provide the Client with written notice as soon as possible and will use best efforts to minimize any disruption to the project timeline.
c. The Client acknowledges that the Developer may have other professional obligations but shall ensure that all project deliverables are completed according to the agreed timeline. The Developer will provide reasonable advance notice of any anticipated changes that could affect project scheduling or delivery.

5. Confidentiality

The Developer shall not disclose to any third party the business of the Client, details regarding the Software, including, without limitation any information regarding the Software's code, the Project Scope, or the Client's business (the **"Confidential Information"**), (ii) make copies of any Confidential Information or any content based on the concepts contained within the Confidential Information for personal use or for distribution unless requested to do so by the Client, or (iii) use Confidential Information other than solely for the benefit of the Client. This obligation shall not apply to information that (i) was publicly known before disclosure; (ii) was lawfully known to the receiving Party before disclosure; (iii) becomes public through no fault of the receiving Party; or (iv) is required to be disclosed by law or court order. Confidentiality obligations shall survive termination of this Agreement for three (3) years, or indefinitely with respect to trade secrets.

"Client Data" means data provided by or on behalf of Client, and data collected or processed by the Software on Client's behalf. Developers will implement reasonable administrative, physical, and technical safeguards appropriate to the nature of the Client Data and will use Client Data solely to perform the Services. The Developer will promptly (within 72 hours) notify the Client of any confirmed unauthorized access to Client Data and will reasonably cooperate in investigation, remediation, and required notifications. Upon Client's request or termination, Developer will return or securely delete Client Data (retaining only what is required by law). The Developer will ensure its personnel and subcontractors are bound by confidentiality obligations no less protective than these.

6. Intellectual Property Rights and Ownership

1. Ownership of Deliverables

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The Parties acknowledge and agree that, upon full payment of all amounts due under this Agreement, the Client shall own all right, title, and interest in and to the specific software, source code, designs, and related documentation created by the Developer for the Client under this Agreement (the "Deliverables"). Such ownership includes all copyrights and other intellectual property rights in Deliverables, subject to the exceptions and licenses provided below.

2. **Background Technology**
   The Developer retains all rights, title, and interest in any pre-existing or independently developed code, algorithms, libraries, templates, frameworks, tools, methods, know-how, or other materials (collectively, "Background Technology") that the Developer uses or incorporates in connection with the Deliverables. Developer grants Client a perpetual, worldwide, royalty-free, irrevocable, transferable (to successors/affiliates), sublicensable license to use, reproduce, modify, distribute, publicly perform and display Developer's Background Technology solely as incorporated in the Deliverables, to exploit the Deliverables for Client's products and services.
3. **Third-Party and Open-Source Software**
   The Deliverables may include third-party or open-source software components. Such components are governed by their respective license terms, and the Client's rights and obligations will be subject to those licenses. Developer will not include any Third-Party or Open-Source Software that imposes a requirement to disclose or license Client's proprietary code (e.g., strong copyleft) without Client's prior written consent and will furnish a list of all OSS components and licenses included in each release.
4. **Moral Rights and Cooperation**
   To the extent permitted by law, the Developer waives any moral rights in Deliverables and agrees to execute any documents reasonably requested by the Client to confirm or record the transfer of ownership set forth above.
5. **Condition of Ownership Transfer**
   Ownership of the Deliverables shall not transfer until the Developer has received full payment of all fees owed under this Agreement. Until such payment is received, all rights remain with the Developer.
6. **Developer's Portfolio Rights**
   The Developer may display after public release and only non-confidential portions of the Deliverables (such as screenshots or project descriptions) in its professional portfolio or marketing materials, provided that the Developer does not disclose any proprietary information of the Client.

7. Warranty and Limitation of Liability

The Developer represents and warrants to the Client the following:

1. **Limited Warranty (15-Day Bug-Fix Period)**
   Developer warrants that, for a period of fifteen (15) days following the earlier of (a) Client's acceptance of the MVP or (b) public launch of the Software (whichever occurs first), the Software will substantially conform to the functional requirements set forth in the Project Scope. During this period, Developer will, at its own expense, correct any reproducible material defects reported in writing by Client.

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2. **Exclusions**
   This warranty does not apply to:
   a. modifications made by anyone other than Developer;
   b. errors or failures caused by third-party services, libraries, hosting providers, or operating-system updates;
   c. issues resulting from misuse, neglect, or improper configuration by Client; or
   d. requests for enhancements, new features, or redesigns.
3. **Disclaimer of Other Warranties**
   Except as expressly stated above, Developer makes no other warranties, express or implied, including but not limited to implied warranties of merchantability, fitness for a particular purpose, or non-infringement. The Software and all related deliverables are provided "as is."
4. **Limitation of Liability**
   Except for (i) breaches of confidentiality, (ii) infringement indemnity obligations, (iii) Client's payment obligations, or (iv) a party's gross negligence or willful misconduct, each party's total liability under this Agreement shall not exceed the total amount paid by Client in the twelve (12) months preceding the claim. Neither Party shall be liable for any indirect, incidental, consequential, special, or punitive damages, including loss of profits or data, even if advised of the possibility of such damages. These limitations apply to all causes of action in the aggregate, including contract, tort, and strict liability.
5. **Post-Warranty Support**
   After the fifteen-day warranty period, any additional maintenance or support shall be billed at the Developer's then-current hourly rate or under a separate maintenance agreement.

8. Change in Project Scope

1. The Client may request that reasonable changes be made to the Project Scope and to the tasks associated with the implementation of the Project Scope. If the Client requests such a change, the Parties shall confer in good faith to determine the impact of the proposed change on the project's cost, schedule, and deliverables. The Developer will use their best efforts to accommodate minor changes that do not materially affect the cost or timeline at no additional charge.

2. If the proposed change requires additional time, effort, or expense, the Parties shall prepare and execute a written Change Order describing the modification, any related fee or timeline adjustment, and the date of such change will take effect. The Developer shall have no obligation to begin any work outside the approved Project Scope until both Parties have agreed in writing to the Change Order. The Client acknowledges that any change to the approved Project Scope may extend the delivery schedule and increase the total project cost. Verbal or informal requests are not binding; no out-of-scope work will commence absent from a mutually executed Change Order.

9. Independent Contractor

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The Developer is an Independent Contractor and not an employee, agent, or partner of the Client. The Developer shall be solely responsible for the payment of all taxes, insurance, and other expenses incurred in connection with the performance of the Services.

10. Entire Agreement

This Agreement constitutes the entire agreement between the parties and supersedes all prior negotiations, understandings, and agreements between the parties.

11. Governing Law and Attorney's Fees

This Agreement shall be governed by and construed in accordance with the laws of the Virgin Islands of the United States, without regard to its choice of law principles. The parties agree to binding arbitration as set forth in Section 12. Any court proceeding to enforce, confirm, or vacate an arbitral award shall be brought exclusively in the Superior Court of the Virgin Islands, St. Croix Division. The prevailing party shall be entitled to recover its reasonable attorneys' fees, costs, and expenses incurred in connection with such proceeding.

12. Arbitration

Any dispute arising out of or relating to this Agreement shall be finally resolved by binding arbitration administered by the American Arbitration Association (AAA) under its Commercial Arbitration Rules. The seat and venue of arbitration shall be St. Croix, U.S. Virgin Islands. The matter shall be heard by one (1) arbitrator. The language shall be English. The arbitrator may award any relief available at law or in equity. Either party may seek temporary injunctive relief in court to preserve the status quo pending arbitration. Judgment on the binding award may be entered in any court of competent jurisdiction.

13. Indemnification

1. **Developer IP Indemnity**
   The Developer shall defend, indemnify, and hold harmless the Client from and against any third-party claims, damages, or expenses (including reasonable attorneys' fees) alleging that the Deliverables, as provided by the Developer, infringe any intellectual property right under applicable law. The Developer's obligations under this Section shall not apply to claims arising from (i) modifications made by the Client or any third party not authorized by the Developer; (ii) combination of the Deliverables with items not supplied by the Developer; or (iii) Third-Party or Open-Source Software components used under their respective licenses. If any portion of the Deliverables is found or alleged to infringe, the Developer may, at its option and expense: (1) procure the right for the Client to continue using the Deliverables; (2) modify the Deliverables so that they become non-infringing; or (3) remove the infringing component and refund the fees paid for the affected Deliverable, less reasonable use.
2. **Mutual General Indemnity**
   To the extent permitted by law, each party shall defend, indemnify, and hold harmless the other party from and against any and all third-party claims, damages, liabilities, costs,

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and expenses (including reasonable attorneys' fees) arising from or related to (i) the indemnifying party's materials, data, or content; or (ii) the indemnifying party's breach of this Agreement, gross negligence, or willful misconduct.

14. Modification

No modification of this Agreement shall be valid unless in writing and agreed upon by both Parties.

15. Force Majeure

Neither Party shall be liable for any failure or delay in performance under this Agreement to the extent caused by circumstances beyond its reasonable control, including acts of God, natural disasters, epidemics, war, terrorism, civil unrest, labor disputes, internet or utility outages, or governmental restrictions. Performance deadlines shall be extended for the duration of the delay caused by such events, provided the affected Party promptly notifies the other Party in writing and uses reasonable efforts to resume performance.

16. Survival

The provisions of Sections 5 (Confidentiality), 6 (Intellectual Property Rights and Ownership), 7 (Warranty and Limitation of Liability), 11 (Governing Law and Attorney's Fees), 12 (Arbitration), 13 (Indemnification), and 19-20 (Severability and Counterparts) shall survive termination or expiration of this Agreement.

17. Notices

Notices must be in writing and are deemed given when sent by email with confirmation of delivery, or by nationally recognized overnight courier, to the addresses first listed above (or as updated by written notice). Email notices are effective upon acknowledgment of receipt or confirmed delivery record.

18. Assignment

Neither party may assign this Agreement without the other party's prior written consent, except that either party may assign it to an affiliate or in connection with a merger, sale, or reorganization, provided that written notice of such assignment is given to the other party.

19. Severability; Waiver

If any provision of this Agreement is held unenforceable, it will be modified only to the minimum extent necessary to make it enforceable, and the remainder will remain in full force and effect. No waiver will be effective unless in writing, and no waiver of one breach will constitute a waiver of any other.

20. Counterparts; Electronic Signatures

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This Agreement may be executed in counterparts and by electronic or digital signature, each of which will be deemed an original, and all of which together constitute one instrument.
IN WITNESS WHEREOF, each of the Parties has executed this Software Development Agreement, both Parties by its duly authorized officer, as of the day and year set forth below.

Webbe Co. LLC

Name: _____

Signature: _____

Date: _____

GCOAT LLC

Name: _____

Signature: _____

Date: _____

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Exhibit A: Project Scope

Project Title: **The Webbe Co. LLC Budgeting App**

1. Services

Project Description: The Developer will provide software development and consulting services to the Client to complete the development of a custom cross-platform mobile application featuring AI-driven budget creation, educational financial guidance, and manual budget control, to help users set financial goals, create budgets manually or with AI, track income, expenses, and savings, and learn budgeting strategies.

The application will include the following features:

1. **User Authentication and Accounts**

   - **Authentication:** Email/password, Google, Apple Sign-In.
   - **Splash Screen:** Branded loading screen at app startup.
   - **User profile management:** Adjusting basic user information.

2. **Onboarding Flow**

   - **Onboarding Flow:** Guided steps to introduce features and collect initial setup info (income, goals, currency).

3. **Budget Management**

   - **Manual Budget Creation:** User inputs income, expenses, and categories manually.
   - **AI Budget Creator Chatbot:**
     - Conversational setup where the user shares goals (e.g., "Save 2 months' rent").
     - AI generates budget structure based on income and expenses.
     - AI can adjust existing budgets upon request.
   - **Categories:** Predefined and customizable categories (Income, Housing, Food, Transportation, etc.).
   - **Budget Items:** Line items under categories (e.g., Category: Housing → Item: Electricity).
   - **Monthly Budgets:** Distinct budget tracking per month.
   - **Reset Budget:** Option to clear and start fresh.

4. **Transactions**

   - **Manual Transaction Entry:** Add expenses or income transactions with date, amount, and category.
   - **Transactions List:** View all transactions and filter by category or date.
   - **Speech-to-Text Input:** Optional voice entry for transactions (if enough time is available).

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5. **Dashboard and Insights**

- Metrics:
  - Total Income
  - Total Expenses
  - Total Remaining (Savings)
  - Total Transactions
  - Per-Category Totals
- Visual Representation:
  - Charts/Graphs showing Planned, Spent, and Remaining.
- Monthly Performance Overview: Snapshot of budget health.

6. **AI Budget Assistant**

- Embedded in dashboard and budget creation flow.
- Capable of:
  - Providing tips for better savings.
  - Explaining budgeting concepts (e.g., 50/30/20 rule).
  - Answering "What if" questions ("What happens if I increase rent by $200?").

7. **Compliance and Support:**

- Contact / Help Center: Simple help screen with FAQs and contact form/email link.
- Legal Pages: Terms & Conditions, Privacy Policy.

2. Deliverables and MVP Acceptance

The Developer and the Client agree that the project will be considered complete upon delivery and acceptance of the Minimum Viable Product (MVP). The deliverables listed below represent the essential components required to achieve MVP status, ensuring the app is functional, user-ready, and meets agreed-upon performance standards. Acceptance of the MVP will be based on the successful completion and verification of the criteria outlined in this section.

MVP Deliverables

1. UI/UX Design Package (Wireframes/High-Fidelity Mockups).

2. Working Cross-Platform Mobile App with all MVP features.

3. Test Builds via TestFlight (iOS) and Internal Testing (Google Play).

4. Technical Documentation for backend and AI integrations.

5. 15-Day Post-Launch Support Plan (bug fixes for initial release period).

MVP Acceptance Criteria

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1. Users can create a manual budget and AI-generated budget.

2. Budgets are saved and retrievable by user accounts.

3. Transactions can be added, edited, and deleted.

4. Dashboard updates metrics in real time.

5. AI assistants can generate and adjust budgets based on goals.

6. App passes internal QA for functionality and UI consistency.

7. App available for download on iOS & Android test environments.

8. The Client will have 5 business days after delivery of each milestone build to test and either (a) accept in writing, or (b) provide a single consolidated list of material non-conformities to the acceptance criteria. If Client does not respond within that period, the milestone is deemed accepted. The Developer will remedy any material non-conformities and resubmit for acceptance on the same terms.

3. Agile Development Process

The Developer and the Client agree to use an agile methodology for the software development process. The agile methodology is a flexible and iterative approach to software development that emphasizes collaboration, flexibility, and the delivery of working software in small, incremental releases.

Key Principles and Practices:

1. **Regular Meetings and Communication:** The Parties will hold biweekly meetings to review progress, discuss feedback, and plan upcoming tasks. Additional weekly stand-up meetings may be held to address any obstacles, define scope, prioritize tasks, and estimate upcoming work. Communication will occur through agreed-upon channels such as Trello, email, or video conference.

2. **Continuous Feedback and Incremental Releases:** The Developer will provide regular progress updates and working software releases in small, incremental versions. The Client will test and provide timely feedback on each release, allowing continuous improvement and refinement throughout the project lifecycle.

3. **Sprint Reviews and Retrospectives:** At the end of each sprint, the Developer will present a working release for Client review and testing. The Parties will then hold a Sprint Retrospective to evaluate the sprint, identify areas for improvement, and plan adjustments for the next cycle.

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4. **Acceptance Criteria:** For each deliverable or sprint, the Developer and Client will define measurable acceptance criteria specifying the conditions required for completion and approval. A deliverable is considered accepted once these criteria are met or deemed accepted under the terms of this Agreement.

5. **Collaboration and Adaptability:** Both Parties will maintain open, honest communication and remain flexible to adjust priorities and features as the project evolves. Minor changes that do not materially impact the schedule or cost may be accommodated within the agile workflow.

6. **Project Management and Work Plans:**

   The Parties will use Trello to track progress, assign tasks, and document updates.

   - Monthly Work Plans and Trello Records: Trello board records, task cards, and jointly confirmed Monthly Work Plans constitute the authoritative and binding statement of the scope of work for that month.
   - Each Monthly Work Plan will identify the features, priorities, and deliverables for the corresponding period and will be deemed incorporated into this Exhibit A by reference.
   - Any change to a Monthly Work Plan must be mutually confirmed in writing through Trello comments, email, or a signed Change Order under Section 8 of this Agreement.

4. Timeline

Month	Phase	Description
1	Wireframes & UX/UI	Design core user flows, layout, and visual interfaces for all major screens.
2	Coding of UI	Develop the front-end components and implement the approved designs in Flutter.
3	Coding App Backend	Build and configure backend services, APIs, and database architecture.

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4	Integration of Backend To UI	Connect the backend with the front-end, ensuring data flow and feature functionality.
5	Testing & Debugging	Conduct QA testing, resolve bugs, and verify performance across devices.
6	Deployment & Post Launch Support	Deploy the MVP to app stores and provide 15-day post-launch maintenance and fixes.

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